

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 7, 2026
8:30 a.m./1:30 p.m.

13. RACHAEL WORKMAN V. MATTHEW WORKMAN

23FL0947

This matter is before the court for a CCRC review and the issue of child support, as requested in Petitioner's Request for Domestic Violence Restraining Order (DVRO) filed May 22, 2025.

The parties attended CCRC on March 19, 2026. The court is in receipt of a CCRC report dated April 23, 2026, a copy of which was mailed to both parties on April 27, 2026, per the Clerk's Certificate of Mailing filed that day.

Respondent filed a Reply Declaration to the CCRC report on April 30, 2026. It was served the same day. Respondent objects to the recommendations in the April 23rd CCRC report and requests the court order unsupervised visitation and the schedule as set forth in the report. Respondent agrees to continue to use Soberlink testing, if the court grants unsupervised parenting time. Respondent objects to a further substance abuse assessment.

Petitioner's Reply Declaration Regarding 4/23/2026 CCRC Report was filed on May 1, 2026. It was served on April 30th. She is requesting sole legal custody and primary physical custody. She asks that Respondent have four hours of non-professionally supervised visits twice per week on mutually agreed upon dates and times. She asks that Jared True and/or his wife serve as non-professional supervisors and the visits be restricted to El Dorado, Placer and Sacramento counties. She asks the court to order Respondent not to drive the children during visits. Finally, she asks the court to uphold the prior Soberlink testing as follows: Respondent to continue to test two times per day and 10 minutes prior to visits. If Respondent tests positive or misses a test in the week prior to visitation, Petitioner has the authority to cancel the visit.

Regarding custody and visitation, the court finds the recommendations in the CCRC report to be in the best interests of the children and they are hereby adopted as the orders of the court with the following modifications. Respondent's visits shall be non-professionally supervised by either Jared True, Mr. True's wife, or Respondent's mother. Prior to any supervision taking place, the non-professional supervisor shall complete and file an FL-324(NP). Respondent's visits shall be restricted to El Dorado, Placer, or Sacramento county. Respondent shall not drive the children during his visits. The non-professional supervisor may drive the children during the visit if necessary. Respondent shall continue to use Soberlink to test twice per day and 10 minutes prior to visitation. If

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Respondent tests positive or misses a test in the day prior to, or the day of, the visit, Petitioner may cancel the visit and the visit will be forfeited.

Turning to the issue of support, in a stipulation filed with the court on February 17, 2026, the parties agreed to address Petitioner's request for child support during the instant CCRC review hearing.

The February 17, 2026, stipulation also provides that (1) the agreement will remain in place through December 31, 2026, at midnight unless terminated earlier by subsequent written agreement of the parties adopted by the court or court order, and (2) the custody and visitation orders entered October 08, 2025, remain in effect. The October 08, 2025, orders provide that Petitioner shall have temporary sole physical custody and Respondent's visits shall be professionally supervised. Therefore, for the purposes of determining child support, Respondent's custody timeshare is zero.

On March 03, 2026, Respondent filed an updated Income and Expense Declaration (I&E), which was electronically served upon Petitioner on February 26, 2026, according to the proof of service filed March 03, 2026. Respondent's I&E indicates he started a new job on January 12, 2026. Attached to his I&E are paystubs from his previous employer (Biolase MG LLC), covering the period of November 16, 2025, through November 30, 2025, and his current employer (Medical Graphics), covering the period of January 11, 2026, through February 07, 2026. Respondent's current gross monthly income is \$7,750.00, rounded down to the nearest dollar (four week's pay = \$7,153.86; $\$7,153.86 \times 13 = \$93,000.18$ annual pay (52 weeks); $\$93,000.18 / 12$ months = \$7,750.02 per month).

On April 07, 2026, Petitioner filed an updated I&E, which was electronically served upon Respondent that same day according to the Proof of Service, also filed April 07, 2026. Attached to Petitioner's I&E are two paystubs from her employer: (1) the first paystub covers the period of December 25, 2025, through January 26, 2026; and (2) the second paystub covers the period of February 26, 2026, through March 26, 2026. Both paystubs show the same monthly gross pay of \$8,778.60, and the same monthly deductions for retirement (\$661.25), medical insurance (\$661), and union dues (\$79.00).

Based on the above calculations, the court finds guideline child support to be \$2,570 payable from Respondent to Petitioner (see attached X-Spouse). The court orders Respondent to pay Petitioner \$2,570 as and for child support effective November 1, 2025 and payable on the first of each month until further order of the court or termination by operation of law.

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The court finds this order results in an arrears balance of \$15,420 for the months of November through May inclusive. The court orders Respondent to pay Petitioner \$642.50 per month as and for arrears effective May 15, 2026. All future payments are due on the 15th of each month until paid in full (approximately 24 months). If there is any missed or late payment the full amount is due and owing with legal interest.

In addition to the foregoing monthly support payments, the parties are ordered to equally share in any uninsured medical care costs for the children, childcare costs when such costs are incurred as a result of employment or necessary education for employment, and agreed upon extracurricular activities. The parties are ordered to follow the procedures as set forth in the attached FL-192.

Petitioner is directed to prepare the findings and orders after hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #13: THE COURT FINDS THE RECOMMENDATIONS IN THE CCRC REPORT TO BE IN THE BEST INTERESTS OF THE CHILDREN AND THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT WITH THE FOLLOWING MODIFICATIONS. RESPONDENT'S VISITS SHALL BE NON-PROFESSIONALLY SUPERVISED BY EITHER JARED TRUE, MR. TRUE'S WIFE, OR RESPONDENT'S MOTHER. PRIOR TO ANY SUPERVISION TAKING PLACE, THE NON-PROFESSIONAL SUPERVISOR SHALL COMPLETE AND FILE AN FL-324(NP). RESPONDENT'S VISITS SHALL BE RESTRICTED TO EL DORADO, PLACER, OR SACRAMENTO COUNTY. RESPONDENT SHALL NOT DRIVE THE CHILDREN DURING HIS VISITS. THE NON-PROFESSIONAL SUPERVISOR MAY DRIVE THE CHILDREN DURING THE VISIT IF NECESSARY. RESPONDENT SHALL CONTINUE TO USE SOBERLINK TO TEST TWICE PER DAY AND 10 MINUTES PRIOR TO VISITATION. IF RESPONDENT TESTS POSITIVE OR MISSES A TEST IN THE DAY PRIOR TO, OR THE DAY OF, THE VISIT, PETITIONER MAY CANCEL THE VISIT AND THE VISIT WILL BE FORFEITED.

THE COURT FINDS GUIDELINE CHILD SUPPORT TO BE \$2,570 PAYABLE FROM RESPONDENT TO PETITIONER (SEE ATTACHED X-SPOUSE). THE COURT ORDERS RESPONDENT TO PAY PETITIONER \$2,570 AS AND FOR CHILD SUPPORT EFFECTIVE NOVEMBER 1, 2025, AND PAYABLE ON THE FIRST OF EACH MONTH UNTIL FURTHER ORDER OF THE COURT OR TERMINATION BY OPERATION OF LAW.

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THE COURT FINDS THIS ORDER RESULTS IN AN ARREARS BALANCE OF \$15,420 FOR THE MONTHS OF NOVEMBER THROUGH MAY INCLUSIVE. THE COURT ORDERS RESPONDENT TO PAY PETITIONER \$642.50 PER MONTH AS AND FOR ARREARS EFFECTIVE MAY 15, 2026. ALL FUTURE PAYMENTS ARE DUE ON THE 15TH OF EACH MONTH UNTIL PAID IN FULL (APPROXIMATELY 24 MONTHS). IF THERE IS ANY MISSED OR LATE PAYMENT THE FULL AMOUNT IS DUE AND OWING WITH LEGAL INTEREST.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6275 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

2026 Guideline Summary Monthly Figures

Fixed Shares

	Father	Mother
Number of children	0	3
Percent time with NCP	0.00%	0.00%
Filing status	MFSIN	HH/MLA
Number of exemptions	1	4
Wages and salary	7750	8779
Self employed income	0	0
Other taxable income	0	0
TANF CS received	0	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	0	0
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	0	661
Other medical expenses	0	0
Property tax expenses	629	423
Ded interest expense	469	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	79
Mandatory retirement	0	661
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	0	0

Monthly Figures**2026****Nets (adjusted)**

Father	5732
Mother	6334
Total	12066
Support	
Addons	0
Guideln CS	-2570
Alameda SS	-0
Total	-2570

Cash Flow

Combined net spendable 12066

Father

Payment cost/benefit	-2570
Net spendable income	3161
Federal income tax	969
Federal employment tax	593
State income tax	356
State employment tax	101
Total taxes	2018
Federal filing status	MFSIN
State filing status	MFSIN

Mother

Payment cost/benefit	2570
Net spendable income	8905
Federal income tax	202
Federal employment tax	672
State income tax	57
State employment tax	114
Total taxes	1044
Federal filing status	HH/MLA
State filing status	HH/MLA

FC 4055 checking: **ON****Per Child Information**

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		0 - 100	0	0	0 Father	2,570 Father	2,570 Father
	0000-00-00	0 - 100	0	0	0 Father	493 Father	493 Father
	0000-00-00	0 - 100	0	0	0 Father	765 Father	765 Father
	0000-00-00	0 - 100	0	0	0 Father	1,313 Father	1,313 Father

Superior Court of California
County of El Dorado

NOTICE OF RIGHTS AND RESPONSIBILITIES REGARDING CHILD SUPPORT

Childcare and Health Care Costs and Reimbursement Procedures

Your child support order may include a provision for payment of childcare or uninsured health care costs. Childcare costs may be included as part of the monthly child support payment or reimbursable as a percentage of the costs. If the childcare costs are included as part of the monthly child support payment, you must pay that amount each month until the court changes (modifies) the child support order. If you need to change your child support order because there has been a change in the cost of childcare, see page 2.

If you have a child support order that includes a provision for the reimbursement of a percentage of childcare costs or a portion of the child's or children's health care costs and those costs are not paid by insurance, the **law says**:

1. **Notice.** You must give the other parent an itemized statement of the charges that have been billed for any childcare costs or health care costs not paid by insurance. You must give this statement to the other parent within a reasonable time, but no more than 90 days after those costs were given to you.
2. **Proof of full payment.** If you have already paid all of the childcare costs or uninsured health care costs, you must (1) give the other parent proof that you paid them and (2) ask for reimbursement for the other parent's court-ordered share of those costs.
3. **Proof of partial payment.** If you have paid only your share of the childcare costs or uninsured health care costs, you must (1) give the other parent proof that you paid your share, (2) ask that the other parent pay his or her share of the costs directly to the childcare or health care provider, and (3) give the other parent the information necessary for that parent to be able to pay the bill.
4. **Payment by notified parent.** If you receive notice from a parent that a childcare or uninsured health care cost has been incurred, you must pay your share of that cost within the time the court orders; or if the court has not specified a period of time, you must make payment (1) within 30 days from the time you were given notice of the amount due, (2) according to any payment schedule set by the health care provider, (3) according to a schedule agreed to in writing by you and the other parent, or (4) according to a schedule adopted by the court.
5. **Going to court.** Sometimes parents get into disagreements about childcare and health care costs. If you and the other parent cannot resolve the situation after talking about it, you can request that the court make a decision.
- a. **Disputed requests for payment.** If you dispute a request for payment made by the other parent, you may file a request for the court to resolve the dispute, but only if you pay the requested amount before filing your request.
- b. **Nonpayment.** If you claim that the other parent has failed to pay you back for a payment, or they have failed to make a payment to the provider after proper notice, you may file a request for the court to resolve the dispute.
- c. **Paid charges.** The court will presume that if uninsured health care costs or childcare costs for employment or necessary training for job skills have been paid, those costs were reasonable. If you want to dispute paid charges, you will have to show the court that the costs were unreasonable.
- d. **Attorney's fees.** If the court decides one parent has been unreasonable, it can order that parent to pay the other parent's attorney's fees and costs.
- e. **Court forms.** Use forms [FL-300](#) and [FL-490](#) to get a court date. See form [FL-300-INFO](#) for information about completing, filing, and serving your court papers.
6. **Court-ordered insurance coverage.** If a parent provides health care insurance as ordered by the court, that insurance must be used at all times to the extent that it is available for health care costs.
- a. **Burden to prove.** The parent claiming that the coverage is inadequate to meet the child's needs has the burden of proving that to the court.
- b. **Cost of additional coverage.** If a parent purchases health care insurance in addition to that ordered by the court, that parent must pay all the costs of the additional coverage. In addition, if a parent uses alternative coverage that costs more than the coverage provided by court order, that parent must pay the difference.
7. **Preferred health providers.** If the court-ordered coverage designates a preferred health care provider, that provider must be used at all times consistent with the terms of the health insurance policy. When any parent uses a health care provider other than the preferred provider, any health care costs that would have been paid by the preferred health provider if that provider had been used must be the sole responsibility of the parent incurring those costs.
8. **Need help?** Contact the family law facilitator in your county or call your county's bar association and ask for an experienced family lawyer.

Information Sheet on Changing a Child Support Order

General Info

The court has made a child support order in your case. This order will remain the same unless one of the parents requests that the support be changed (modified). An order for child support can be modified by filing a request to change child support and serving the other parent. If both parents agree on a new child support amount, they can complete, sign, and file with the court a *Stipulation to Establish or Modify Child Support and Order* (form [FL-350](#)). (**Note:** If the local child support agency is involved in your case, it must be served with any request to change child support and approve any agreement.)

Online Self-Help Guide

For more information about how child support works, visit: <https://selfhelp.courts.ca.gov/child-support>.

When a Child Support Order May Be Changed

The court considers several things when ordering the payment of child support.

- First, the number of children is considered, along with the percentage of time each parent has physical custody of the children.
- Next, the net disposable incomes of both parents are determined (which is how much money is left each month after taxes and certain other items like health insurance, union dues, or other child support ordered and paid are subtracted from a parent's paycheck). The court can also look at a parent's earning ability.
- The court considers both parents' tax filing status and may consider hardships, such as the cost of raising the parent's child from another relationship who lives with the parent.

A parent can request to change an existing order for child support when circumstances change significantly. For example if the net disposable income of one of the parents changes, parenting time changes, or a new child is born.

Examples

- You have been ordered to pay \$500 per month in child support. You lose your job. You will continue to owe \$500 per month, plus 10 percent interest on any unpaid support, unless you file a motion to modify your child support to a lower amount and the court orders a reduction.
- You are currently receiving \$300 per month in child support from the other parent, whose net income has just increased substantially. You will continue to receive \$300 per month unless you file a motion to modify your child support to a higher amount and the court orders an increase.
- You are paying child support based on having physical custody of your children 30 percent of the time. After several months it turns out that you actually have physical custody of the children 50 percent of the time. You may file a motion to modify child support to a lower amount.

How to Change a Child Support Order

To change a child support order, you must file papers with the court. *Remember:* You must follow the order you have now.

What forms do I need?

If you are asking to change a child support order, you must fill out one of these forms:

- Form [FL-300](#), *Request for Order* **or**
- Form [FL-390](#), *Notice of Motion and Motion for Simplified Modification of Order for Child, Spousal, or Family Support*

You must also fill out one of these forms, and attach proof of income for the past two months (like your paycheck stubs):

- Form [FL-150](#), *Income and Expense Declaration* **or**
- Form [FL-155](#), *Financial Statement (Simplified)*

What if I am not sure which forms to fill out?

Contact the family law facilitator in your county. You can find them here: www.courts.ca.gov/selfhelp-facilitators.htm.

After you fill out the forms, file them with the court clerk and ask for a hearing date. Write the hearing date on the form.

The clerk may ask you to pay a filing fee. If you cannot afford the fee, fill out these forms, too:

- Form [FW-001](#), *Request to Waive Court Fees* **and**
- Form [FW-003](#), *Order on Court Fee Waiver (Superior Court)*

You must serve the other parent. If the local child support agency is involved, serve it too.

- This means someone 18 or over—not you—must deliver copies of your filed court forms to the other parent, at least **16 court days** before the hearing. Add **5 calendar days** if delivered by mail within California (see Code of Civil Procedure section 1005 for other situations).
- **Court days** are weekdays when the court is open for business (Monday through Friday except court holidays). **Calendar days** include all days of the month, including weekends and holidays. To find court holidays, go to: www.courts.ca.gov/holidays.htm.

Blank copies of both of these forms must also be served:

- Form [FL-320](#), *Responsive Declaration to Request for Order*
- Form [FL-150](#), *Income and Expense Declaration*

Then the server fills out and signs a *Proof of Service*. Take this form, plus one copy, to the clerk and file it at least one week before your hearing.

Go to your hearing and ask the judge to change the support. Bring your tax returns from the last two years and your proof of income for the past two months (like your paycheck stubs). The judge will look at your information, listen to both parents, and make an order. After the hearing, fill out:

- Form [FL-340](#), *Findings and Order After Hearing* **and**
- Form [FL-342](#), *Child Support Information and Order Attachment*

Need help?

Contact the family law facilitator in your county or call your county's bar association and ask for an experienced family lawyer.

Information About Child Support for Incarcerated or Confined Parents

1. Child support. As of September 27, 2022, child support automatically stops if the parent who has to pay is confined against their will for more than 90 days in a row in jail, prison, juvenile detention, a mental health facility, or other institution.

Exception. Child support does not automatically stop if the parent who has to pay has money available to pay child support.

2. Past confinement. Child support also automatically stops during past confinement if it was ordered from October 8, 2015, through December 31, 2019, or January 1, 2021, through September 26, 2022, and the parent who has to pay was confined for more than 90 days in a row during the same time frame.

Exceptions for past confinement. Child support does not automatically stop if the parent who has to pay was in jail or prison for failing to pay child support or for domestic violence against the other parent or the child, or if they had money available to pay support.

3. Timing. The date child support automatically restarts will depend on the parent's release date. If you need to change your child support order, see page 2.

- a. **If released before January 1, 2024,** child support automatically restarts the first day of the first full month after the parent is released.
- b. **If released after January 1, 2024,** child support will automatically restart the first day of the 10th month after the parent is released.

Employment before the 10-month period ends: If the parent who has to pay support starts working before the date child support is set to automatically restart, the person who is owed support or the local child support agency can request the court restart the child support order early. The court may order a different amount of child support if appropriate.

4. More info. For more information about child support and incarcerated parents, see Family Code section 4007.5 or go to <https://selfhelp.courts.ca.gov/child-support/incarcerated-parent>. You can also contact the family law facilitator in your county and can find them here: www.courts.ca.gov/selfhelp-facilitators.htm.

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**14. COUNTY OF EL DORADO V. DEVON MATHIS (OTHER PARENT: AUBREY HASKILL)
PFS20210070**

Other Parent filed a Request for Order (RFO) on March 12, 2026, requesting the court quash the RFO filed by Respondent on February 27, 2026. Proof of Service shows the Department of Child Support Services was served on March 19, 2026. Upon review of the file, there is no Proof of Service showing Respondent was properly served.

The matter is dropped from calendar due to the lack of proper service.

TENTATIVE RULING #14: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.